



CHAPTER xix.

An Act for conferring further powers upon the North-
ampton Gaslight Company. A.D. 1919.
[22nd July 1919.]

WHEREAS the Northampton Gaslight Company (in this Act referred to as "the Company") were re-incorporated by the Northampton Gasworks Act 1858 and under the provisions of that Act and Acts or Provisional Orders confirmed by Parliament subsequently passed relating to the Company and their undertaking (all of which Acts and Orders in this Act are referred to as "the recited Acts") are supplying gas within the county borough of Northampton and certain parishes and places in the county of Northampton :

And whereas it is expedient that the limits within which the Company are authorised to supply gas should be extended by the addition thereto of the parishes and parts of parishes mentioned in the First Schedule to this Act :

And whereas it is expedient that further powers should be conferred upon the Company of using lands for the manufacture conversion and storage of gas and residual products :

And whereas by the recited Acts the Company are authorised to raise capital for the purposes of their undertaking and by the Northampton Gas Act 1887 and the Northampton Gas Order 1904 powers were conferred on the Company with respect to the conversion of their existing capital for the time being into stock to be called "the Northampton Gas Consolidated Stock" (in this Act called "consolidated stock") in pursuance whereof the whole of the capital issued by the Company under the Northampton Gasworks Act 1858 the Northampton Gas Order 1871 and the Northampton Gas Act 1887 amounting to one hundred and seventy-two thousand three hundred and sixty

A.D. 1919. pounds has been so converted into consolidated stock amounting to two hundred and forty-four thousand one hundred and ninety-six pounds of consolidated stock :

And whereas the Company were empowered under the Northampton Gas Order 1904 to raise further sums to the amount of one hundred thousand pounds including premiums :

And whereas the Company have raised the sum of thirty-six thousand eight hundred and eighty-seven pounds seven shillings and twopence by the creation and issue of thirty-five thousand pounds consolidated stock and the capital of the Company now consists of two hundred and seventy-nine thousand one hundred and ninety-six pounds consolidated stock leaving the sum of sixty-three thousand one hundred and twelve pounds twelve shillings and tenpence unissued :

And whereas under the recited Acts the Company are entitled to borrow in respect of the said amount of two hundred and seventy-nine thousand one hundred and ninety-six pounds consolidated stock and in respect of the said amount of sixty-three thousand one hundred and twelve pounds twelve shillings and tenpence unissued capital when issued the sum of seventy-six thousand two hundred and fifty pounds :

And whereas the Company have borrowed and there is now outstanding the sum of fifty-one thousand two hundred and fifty pounds in debenture stock leaving the sum of twenty-five thousand pounds still remaining to be borrowed :

And whereas capital expenditure now requires and from time to time will require to be incurred for the general purposes of the undertaking of the Company in excess of the unexpended balance on capital account and it is expedient that the Company should be empowered to raise moneys and that their borrowing powers should be extended for the purposes aforesaid to the amounts by this Act respectively provided and subject to the conditions and provisions in this Act contained :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

Temporal and Commons in this present Parliament assembled A.D. 1919.
and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Northampton Gas Act 1919 and the recited Acts and this Act may be cited together as the Northampton Gas Acts and Orders 1858 to 1919. Short and collective titles.

2. The following Acts and parts of Acts are (subject to the provisions and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act viz.:— Incorporation of Acts.

The Lands Clauses Acts (except so much thereof as relates only to the taking of lands otherwise than by agreement):

The Gasworks Clauses Acts 1847 and 1871:

Provided that section 13 of the said Gasworks Clauses Act 1847 in its application to the Company shall be read and have effect as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

3. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):— Applying certain provisions of Companies Clauses Acts.

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

A.D. 1919.

Part I. (Relating to cancellation and surrender of shares);

Part II. (Relating to additional capital); and

Part III. (Relating to debenture stock) of the Companies
Clauses Act 1863

as amended by subsequent Acts shall so far as the same are respectively applicable and except so far as the same may be varied by or be inconsistent with the provisions of this Act extend and apply to the Company in respect of the additional capital which they are by this Act authorised to raise.

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

And in this Act—

“The Company” means the Northampton Gaslight Company;

“The Act of 1858” “the Act of 1887” and “the Order of 1904” mean respectively the Northampton Gasworks Act 1858 the Northampton Gas Act 1887 and the Northampton Gas Order 1904 “the recited Acts” means the Act of 1858 the Northampton Gas Order 1871 the Act of 1887 the Order of 1904 and the Northampton Gas (Standard of Calorific Power) Order 1917;

“The undertaking” means the whole undertaking of the Company as authorised by the recited Acts and this Act;

“The existing gas area” means the area within which the Company were immediately before the passing of this Act authorised to supply gas;

“The gas limits” means the existing gas area and the parishes and parts of parishes by this Act added to that area;

“The consolidated stock” means the Northampton Gas Consolidated Stock issued under the provisions of the Act of 1887 and the Order of 1904 and (where the context requires) this Act.

EXTENSION OF LIMITS.

A.D. 1919.

5. From and after the passing of this Act the existing gas area shall be extended so as to include the parishes and parts of parishes mentioned or described in the First Schedule to this Act and the Company may subject to the provisions of the recited Acts and this Act exercise all such powers as by such provisions they are authorised to exercise in relation to the supply of gas within the existing gas area.

Extension of limits.

LANDS.

6.—(1) Subject to the provisions of this Act the Company may by agreement acquire and hold the lands described in the Second Schedule to this Act and thereon erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the gas limits.

Powers to maintain gasworks and convert residual products.

(2) The Company may also upon the said lands—

(a) work up and convert the residual products arising directly or indirectly from the manufacture of gas by them;

(b) purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Company are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Company in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them;

(c) purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid;

but the Company shall not upon the said lands manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary.

A.D. 1919.

Power to
purchase
lands by
agreement.

7. The Company may for the purposes of their undertaking purchase or take on lease (by agreement but not otherwise) and may hold in addition to the lands described in the Second Schedule to this Act and the lands now held by them under the recited Acts any lands and hereditaments not exceeding in the whole ten acres which the Company may require for the purposes of or connected with their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands acquired by the Company under the provisions of this Act shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to this Act.

Certain provi-
sions of Lands
Clauses Con-
solidation Act
1845 not to
apply to lands
acquired by
agreement.

8. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or in any Act of or relating to the Company with which that Act is incorporated the provisions of sections 128 to 132 of the Lands Clauses Consolidation Act 1845 shall not apply to any lands which have been or may be acquired by the Company by agreement.

Power to sell
and lease
lands.

9. The Company may sell and dispose of or may exchange or may let on lease for such period as they think fit any lands for the time being belonging to them which may not at the time be required for the purposes of their undertaking and any such disposal exchange or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit.

Power to
provide
houses.

10. The Company may purchase by agreement or take on lease houses cottages and other buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect fit up maintain and let any such premises as aforesaid upon any lands for the time being belonging or leased to the Company.

CAPITAL AND BORROWING POWERS.

Power to
raise capital.

11.—(1) The Company may from time to time issue additional capital to such amount as shall be sufficient to produce after taking into account the premiums or discounts (if any) which may be obtained or allowed on the issue or re-issue thereof the sum of one hundred and thirty thousand pounds and the powers to raise additional capital conferred on the Company by the recited Acts in so far as the same are unexercised at the passing of this Act are hereby repealed.

(2) Such additional capital may be raised by the creation and issue of new ordinary shares or stock or preference shares or stock or consolidated stock or wholly or partially by one or more of these modes. Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of capital than shall be sufficient (after taking into account premiums and discounts (if any) as aforesaid) to produce the sum of one hundred and thirty thousand pounds. A.D. 1919.

(3) The Company shall not issue any share of less nominal value than ten pounds.

(4) For the purposes and subject to the provisions of this section the Company is hereby authorised to create and issue additional consolidated stock and any such stock when issued shall in all respects and for all purposes whatsoever form one stock with the existing consolidated stock.

12. The directors of the Company may in addition to the sums already borrowed raise for the purposes of the undertaking either by borrowing on mortgage of the undertaking or by the creation or issue of debenture stock or wholly or partially by one or other of such means any sum or sums of money not exceeding in the whole seventy thousand pounds and the powers to borrow conferred on the Company by the recited Acts in so far as the same are unexercised at the passing of this Act are hereby repealed. Provided that no sums shall be borrowed so that the amount of borrowed capital shall at any time be in excess of one-third of the capital raised under this Act and the recited Acts and before any such borrowing is made the Company shall prove to a justice of the peace the position as regards the capital raised and shall obtain his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845. Power to borrow.

13.—(1) Any preference shares or stock or any debenture stock authorised to be raised under the provisions of this Act may be created and issued on such terms and conditions as may be specified in the case of the preference shares or stock in a resolution of the Company passed by a special meeting convened for the purpose and in the case of debenture stock in a resolution of the directors of the Company. Power to issue redeemable preference capital and debenture stock.

(2) If it is so provided in the resolution of the Company or of the directors as the case may be the Company may—

(a) call in and pay off the shares or stock or any part thereof at any time before the date fixed for redemption;

A.D. 1919.

(b) redeem the shares or stock or any part thereof either by paying off the same or by issuing to any shareholder or stockholder subject to his consent other shares or stock in substitution therefor and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) and re-issue shares or stock originally created and issued under this section:

Provided that the creation and re-issue for the purpose of any particular class of shares or stock does not (after the paying off or providing as aforesaid) make the total nominal amount of the particular shares or stock exceed the amount thereof which the Company are for the time being authorised to create and issue.

Limit of
dividends.

14. The Company shall not in any one year pay out of their profits any larger dividend on their capital than a dividend at the rate of seven pounds per centum per annum in respect of every one hundred pounds actually paid up (exclusive of premiums) of so much of the additional capital as may be issued as ordinary capital (other than consolidated stock) or as preference capital or than five pounds per centum per annum in respect of every one hundred pounds of the consolidated stock whether issued before or after the passing of this Act unless a larger dividend be at any time necessary to make up the deficiency of any previous dividends which shall have fallen short of those respective rates of dividend.

New shares
or stock to be
sold by
auction or
tender.

15.—(1) All ordinary shares or stock or preference shares or stock or consolidated stock created or issued by the Company after the passing of this Act shall be issued in accordance with the provisions of this section.

(2) All such shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the town clerk of the county borough of Northampton and to the clerk of every district council whose district is wholly or partially included within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days

before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply: A.D. 1919.

- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any such shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock or consolidated stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any such shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold may be again offered for sale by public auction or by tender in accordance with the

A.D. 1919. provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

Application
of certain
sections of
Act of 1887
and Order of
1904.

16. Subject to the provisions of this Act the provisions of the sections of the Act of 1887 and of the Order of 1904 of which the numbers and marginal notes are hereunder set forth shall with all necessary modifications extend and apply to and in relation to the additional powers of raising and borrowing money conferred upon the Company by this Act as if the same were re-enacted in this Act (that is to say):—

Act of 1887—

Section 28 Priority of mortgages over other debts;

Section 29 For appointment of a receiver:

Order of 1904—

Section 12 Dividends on different classes of ordinary shares or stock to be paid proportionately;

Section 17 Application of premium arising on issue of shares or stock;

Section 18 Debenture stock;

Section 19 Limit of interest on borrowed money but so that such section shall be read and have effect as if the words “six per centum per annum” had been inserted therein in lieu of the words “five per centum per annum” where such last-mentioned words occur in that section;

Section 20 Application of moneys.

Receipt in
case of per-
sons not sui
juris.

17. If any money is payable to any shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian receiver or committee of his estate shall be a sufficient discharge to the Company.

18. The sections of the Act of 1858 the Act of 1887 and the Order of 1904 hereunder set out are hereby repealed (that is to say):—

A.D. 1919.
Repeal of
certain sec-
tions of Acts
of 1858 1887
and Order of
1904.

Act of 1858—

- Section 50 Power to place pipes to light buildings;
- Section 51 Consumption of gas by meter;
- Section 52 Penalty for injuring meters or fraudulently consuming gas;
- Section 53 Power to remove pipes from unoccupied premises;
- Section 58 Power to improvement commissioners to cause purity of gas to be tested;
- Section 59 Cost of experiment to be paid according to the event;
- Section 60 Penalties not to be cumulative;
- Section 61 Undisputed debts may be recovered by distress;
- Section 62 Several names &c. in one warrant;
- Section 63 Costs of proceedings to be added to distress warrant;
- Section 64 Liability to rate not to disqualify justice;
- Section 65 Small sums recoverable in county courts:

Act of 1887—

- Section 13 Restriction on amount of capital to be issued in any one year;
- Section 17 New shares to be offered by auction or tender;
- Section 18 Purchase money of capital sold by auction to be paid within three months;
- Section 19 Notice to be given as to sale &c. of shares;
- Section 20 Where shareholder bids or tenders for a share the same amount as any other person shareholder to be declared the purchaser;
- Section 21 Shares not sold by auction or by tender to be offered to shareholders;
- Section 23 Profits of the Company limited:

Order of 1904—

- Section 11 Profits of undertakers on additional capital limited;
- Section 13 New shares or stock to be offered by auction or tender;

A.D. 1919.

Section 14 Purchase money of shares or stock to be paid within six months;

Section 15 Notice to be given as to sale of shares or stock;

Section 16 Disposal of shares or stock not sold by auction or tender;

Section 22 Fittings let for hire not subject to distress.

MISCELLANEOUS.

For protection of Northampton Corporation.

19. For the protection of the mayor aldermen and burgesses of the county borough of Northampton (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation have effect (that is to say):—

(1) All new mains pipes and works (not being replacements of existing mains pipes and works) to be laid in or along any road (or in or upon or across any bridge or approach thereto) repairable by the corporation shall be laid in such position in or at the side thereof as the corporation in writing under the hand of their surveyor may reasonably direct:

(2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any such road bridge or approach be not less than seven days instead of three days except in cases of emergency:

(3) The plan required by section 9 of the Gasworks Clauses Act 1847 shall be delivered to the corporation or the borough engineer by the Company not less than fourteen days (except for the laying connecting or repairing of consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage bursting or other emergency in which case notice shall be given as soon as practicable) before the Company commence to open or break up or interfere with any such road bridge or approach as aforesaid:

(4) All works in any such road bridge or approach shall be so executed by the Company as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road or over any such

bridge or approach and the Company shall not break up at any one time a greater consecutive length than one hundred yards of any such road bridge or approach: A.D. 1919.

- (5) Where any mains or pipes of the Company (other than service pipes) are to be laid or relaid beneath the surface of the roadway of any such road bridge or approach as aforesaid the same shall be laid or relaid wherever practicable at such a depth that not less than two feet six inches shall intervene between the surface of such roadway and the upper surface of such mains or pipes.

20.—(1) In executing and maintaining the works authorised by the Northampton Gas Acts and Orders 1858 to 1919 where the same cross or will cross over or under or otherwise affect any railway or any part of the works or property of the Midland Railway Company (hereinafter referred to as “the Midland Company”) the Company shall (except so far as it may be otherwise agreed between the Midland Company and the Company) be subject to the following conditions:— For protection of Midland Railway Company.

(a) All such works shall be executed and maintained under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the Midland Company and (except in case of emergency) according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Company of his objections thereto he shall be deemed to have approved thereof:

(b) If within fourteen days after the receipt of any such plans and drawings the Midland Company give to the Company notice that they themselves desire to execute any part of the work (other than the actual laying down of the mains which shall be done by the Company) which will cross over or under any railway or work belonging to them the Midland Company may themselves execute such part of the work under the superintendence and to the reasonable satisfaction of

A.D. 1919.

the Company's engineer and recover the reasonable costs thereof from the Company :

(c) All works which the Company may execute under this subsection shall so far as reasonably practicable be so constructed as to cause no injury to the railways works and property of the Midland Company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution maintenance or failure of such works any injury be caused to the said railway works and property (unless such works shall be carried out by the Midland Company) or any interruption be caused to the traffic the Company shall make full compensation to the Midland Company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as hereinafter provided :

(d) The Company shall bear and on demand pay to the Midland Company the reasonable expense of the employment by the Midland Company during the execution of any work of laying renewing or repairing gas mains which affects their railways of a sufficient number of inspectors watchmen and signalmen to be appointed by the Midland Company for watching and signalling the same with reference to and during the execution of such work of the Company and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors.

(2) Any additional expense which the Midland Company may reasonably and properly incur in maintaining their bridges and works by reason of the existence of any mains or pipes of the Company laid under the powers of this Act across over or under such bridges or works shall be paid by the Company.

(3) Any dispute or difference which may arise between the Midland Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the Midland Company or

the Company and the provisions of the Arbitration Act 1889 A.D. 1919. shall apply to such arbitration.

21. For the protection of the Company of Proprietors of the Grand Junction Canal (hereinafter in this section referred to as "the canal company") the following provisions shall unless otherwise agreed in writing between the Company and the canal company have effect (that is to say):—

For protec-
tion of Grand
Junction
Canal Com
pany.

- (1) The Company shall not without the previous consent in writing of the canal company lay any main pipe or other work for supplying or in connexion with the supply of gas (all of which are hereinafter included in the expression "work of the Company") in under through over or across the canal of the canal company or the towing-path thereof or other property of the canal company otherwise than in the roadway of a fixed bridge carrying a public carriage road over the same:
- (2) No injury to or interference with the structure of any bridge belonging to the canal company or which they are liable to maintain or to or with the canal towing-path or other property of the canal company and no interruption to the traffic on the canal or towing-path shall be occasioned in the laying maintenance repair renewal relaying or enlarging of any work of the Company:
- (3) The canal company may at any time and from time to time upon giving to the Company fourteen days previous notice in writing of their intention so to do (except in cases of emergency in which case notice shall be given as soon as practicable after the work has been commenced) alter repair or renew any bridge (including the approaches thereto) belonging to the canal company or which they are liable to maintain in over or across which any work of the Company has been laid in the same manner as they might have done if this Act had not been passed and the Company shall at their own cost and to the reasonable satisfaction of the engineer of the canal company alter the position of the said work of the Company or temporarily support the same or take such other steps in relation to the said work as may be reasonably necessary to enable the canal company to carry

A.D. 1919.

out such alteration repair or renewal and the provisions of this section shall apply to the said work in its altered position. Provided that during such alteration repair or renewal the canal company shall afford to the Company reasonable facilities for carrying any work of the Company across the canal:

(4) All operations of the Company in relation to the laying maintenance repair renewal relaying or enlarging of any work of the Company in over or across any such bridge of the canal company or which they are liable to maintain or in or under the approaches thereto so far as maintainable by the canal company shall be carried out to the reasonable satisfaction of the engineer of the canal company and except in cases of emergency under his supervision (if the same be given) and according to plans approved by him before the work is commenced. Provided that if the said engineer shall not approve or disapprove of such plans within fourteen days after the same shall have been submitted to him he shall be deemed to have approved thereof:

(5) Any dispute or difference which may arise between the Company and the canal company under this section shall be determined by the arbitration of an engineer or other fit person to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and in other respects the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Fittings
fixed to pre-
mises to
remain pro-
perty of
Company.

22.—(1) Any meters engines ranges pipes stoves fittings apparatus appliances and things (in this section referred to as “fittings”) let before or after the passing of this Act by the Company on hire or under a hire purchase agreement shall notwithstanding that they may be fixed or fastened to any part of any premises in which they may be situate or to the soil under such premises at all times continue to be the property of and removable by the Company and shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof

or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof. A.D. 1919.

(2) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any such fittings are or shall be fixed.

23. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which the Company are entitled under the terms of any agreement hereinafter in this section referred to to remove the same or in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the meters engines ranges pipes stoves fittings apparatus appliances and things belonging to the Company and let by them on hire or under hire purchase agreement to the occupier or former occupier of the premises (as the case may be). Power to enter premises and remove fittings.

24.—(1) In any case in which the Company are by virtue of any enactment relating to their undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall re-connect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847: As to mode of cutting off supplies...

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

25. In any case in which in consequence of any default on the part of the occupier of any premises the Company Expenses of re-connecting discon-

A.D. 1919. have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of re-connecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Recovery of penalties &c.

26. Save as otherwise by this Act expressly provided all offences against this Act or any other Act relating to the Company and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands.

27. Proceedings for the recovery of any demand made under the authority of this Act or the recited Acts or any of them or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Minimum charge for gas laid on to premises having a supply of electricity or of gas for other than domestic purposes.

28. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes (not being domestic purposes) the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Power to establish a benefit fund.

29.—(1) The directors may if they think fit in respect of any half year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not

exceeding one halfpenny per one thousand cubic feet of gas supplied by the Company during such half year to a fund to be called "the benefit fund":

A.D. 1919.

Provided that the amount of the sums so appropriated and for the time being standing to the credit of the benefit fund shall not at any time exceed the amount which the directors would have been entitled to appropriate to the benefit fund out of the revenue of the Company at the rate aforesaid during the then preceding five years.

(2) The directors may out of the benefit fund grant such pensions retiring superannuation or other allowances or make such payments to any weekly servants or employees of the Company who may be disabled or injured or may be retired from or become incapacitated through age permanent injury or other infirmity from continuing in the service of the Company or to the widow or family or dependents of any such servant or employee or of any weekly servant or employee dying whilst in the service of the Company as the directors may determine.

30.—(1) The directors may in addition to forming a benefit fund under this Act grant such pensions retiring superannuation or other allowances or make such payments as they may think fit to any officers or servants of the Company other than those employed weekly (all of whom hereinafter in this section are referred to as "employees").

Power to
grant pen-
sions &c.

(2) In the event of any employee dying while in the service of the Company or being disabled or injured or retiring from or becoming incapacitated through age permanent injury or other infirmity from continuing in the service of the Company the directors may grant such pensions allowances or payments as they may determine to the widow or family or dependents of any such employee.

(3) The directors may enter into and carry into effect such arrangements as they may think fit for securing to any employee his widow family or dependent such pensions allowances or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply the funds and revenues of the Company Provided that the total amount of the payments made by the directors in any year under the provisions of this section shall not exceed an amount equal to one halfpenny per thousand cubic feet of gas supplied by the Company during such year.

A.D. 1919.

Power to
directors to
make dona-
tions sub-
scriptions
&c.

31. The directors may subscribe or make donations to infirmaries and hospitals and convalescent homes and other similar institutions and objects or to industrial exhibitions or to the benevolent or sick funds of the officers servants and employees of the Company and may for any of these purposes apply the funds and revenues of the Company.

Costs of Act.

32. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act. A.D. 1919.

THE FIRST SCHEDULE.

PARISHES AND PARTS OF PARISHES ADDED TO EXISTING GAS AREA.

Boughton Pitsford Brixworth Spratton Dallington Church Brampton
Chapel Brampton Duston Harlestone Althorp Brington Upton Harpole
Kislingbury Rothersthorpe Blisworth Milton Collingtree Courteenhall
Roade Hardingstone Great Houghton Little Houghton Weston Favell
Little Billing Great Billing Ecton Moulton Park Moulton and
Overstone.

THE SECOND SCHEDULE.

LANDS FOR THE MANUFACTURE AND STORAGE OF GAS AND MANUFACTURE AND CONVERSION OF RESIDUAL PRODUCTS.

A piece of land bounded on the west by the railway of the London and North Western Railway Company (Northampton and Peterborough Branch) on the north by the River Nene or Nen on the north-west by a railway or siding belonging to the Company and joining up with the railway of the said London and North Western Railway Company and leading to the existing gasworks of the Company on the north-east by lands belonging to and forming part of the existing gasworks of the Company and on the south in part by the River Nene or Nen but together with half the bed of such river and on other part by a strip of land abutting on the Grand Junction Canal (Northampton Branch) and on the east by the overflow from the said canal to the said river the said land comprising the inclosures numbered 33 36 and 37 on the 25¹/₀ Ordnance map Northamptonshire Sheet XLV. 9 (second edition 1901).

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

To be purchased through any Bookseller or directly from
H.M. STATIONERY OFFICE at the following addresses:
IMPERIAL HOUSE, KINGSWAY, LONDON, W.C. 2, and 28, ABINGDON STREET, LONDON, S.W. 1;
37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
23, FORTH STREET, EDINBURGH;
or from E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.

